



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 98TH REGULAR SESSION OF THE 13TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE MUNICIPAL SESSION HALL ON OCTOBER 8, 2024

PRESENT:

Hon. Harvey S. Manawatao Municipal Vice-Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Renato A. Calañas		SB Member
Hon. Michael C. Escuyos		SB Member
Hon. Carmelito E. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Tanie A. Quillano		SB Member

EX-OFFICIO MEMBER:

Hon. Jeff Anthony D. Beloria SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBER:

Hon. Rencio P. Valeroso SB Member

EX-OFFICIO MEMBER:

Hon. Blandena V. Sugian ABC President

SECTORAL REPRESENTATIVE:

Hon. Ricardo S. Iligan IP Mandatory Representative

ORDINANCE NO. 21
Series of 2024

**"AN ORDINANCE CREATING LGU-CARMEN HUMAN RIGHTS ACTION CENTER (HRAC) UNDER THE
OFFICE OF THE MUNICIPAL MAYOR AND DEFINING ITS POWERS AND FUNCTIONS"**

Author : Hon. Michael C. Escuyos

Enacted: All Members present

EXPLANATORY NOTE

WHEREAS, Article 2, Section 11 of the 1987 Constitution, provides that the State values the
dignity of every person and guarantees full respect for human rights;

WHEREAS, Republic Act 7160 or the Local Government Code of 1991 Section 50 (b) (1) mandates all levels of Sanggunian to create a human rights committee that will spearhead the development of local policies and legislations that will address issues on human rights, rules of law, and access to justice;

WHEREAS, the Department of the Interior and Local Government (DILG) and Commission on Human Rights (CHR) Joint Memorandum Circular No. 1, Series of 2014 sets out the mechanism for mainstreaming human rights through the rule of law and access to justice at the level of provinces, cities, municipalities, and barangays through the establishment of Human Rights Action Centers (HRACs);

WHEREAS, the Human Rights Action Center is a local mechanism that will ensure the mainstreaming of human rights, the rule of law, and access to justice in local governance and will ensure the accountability of local authorities in the promotion, protection, and full realization of all human rights and at the same time instill greater public awareness of human rights;

WHEREAS, the Human Rights Action Center further serves as a mechanism in advancing good local governance for it promotes the importance of peace, human rights, and development, encourages the mainstreaming of human rights in the local government's programs, projects, and activities, harmonizes local human rights structures, and provides a democratic space for non-government organizations and civil society organizations to participate in local governance;

WHEREAS, the Human Rights Action Center expands and creates better access to justice in the locality by making legal and judicial remedies more available, accessible, affordable, and acceptable to the citizenry, empowering the citizens to exercise their rights on access to justice through legal information, education, and communication campaigns and by enabling the LGUs to facilitate the right of their citizens to access to justice;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur, in a session assembled, that:

SECTION 1. Title- This Ordinance shall be known as "AN ORDINANCE CREATING THE LOCAL GOVERNMENT UNIT OF CARMEN, SURIGAO DEL SUR HUMAN RIGHTS ACTION CENTER (HRAC) UNDER THE OFFICE OF THE MUNICIPAL MAYOR AND DEFINING ITS POWER AND FUNCTIONS."

SECTION 2. Statement of Policy- The Local Government Unit of Carmen, Surigao del Sur guarantees full respect for human rights and the dignity of every human person and promotes social justice in all phases of development. It accords the highest priority to the enactment of measures that protect and enhance the rights of the people and the promotion of general welfare. The establishment of Human Rights Action Centers (HRACs) at every level of governance is considered an integral step in the pursuit of this policy.

SECTION 3. Statement of Purpose- Local Government Unit of Carmen, Surigao del Sur Human Rights Action Center (HRAC) shall provide local structural support to the Barangay Human Rights Action Center (HRACs). These Centers shall serve to:

(a) enhance the capacity of the Commission of Human rights to discharge its investigation, monitoring, and education programs thereby empowering rights holders to assert their rights, and duty bearers to understand.

(b) deliver on their obligations to promote, protect, and fulfill human rights and access to justice.

(c) provide the use of human rights-based approaches to local governance and development programming.

SECTION 4. Definition of Terms and Acronyms- As used in this Ordinance the following terms and acronyms shall mean:

- a. Access to Justice- refers to the basic principle of the rule of law, where people seek and obtain remedies through formal or informal institutions of justice for human rights abuses and violations.
- b. BHRAC- refers to the Barangay Human Rights Action Center.
- c. BHRAO- refers to the Barangay Human Rights Action Officer.
- d. BHRAcT- refers to the Barangay Human Rights Action Team.
- e. CHR- refers to the Commission on Human Rights.
- f. DILG- refers to the Department of the Interior and Local Government.
- g. HRAC- refers to the Human Rights Action Center.
- h. HRAcT- refers to the Human Rights Action Team.
- i. Human Rights- refers to the commonly understood as alienable fundamental rights to which a person is inherently entitled simply because she or he is a human being.
- j. Human Rights Promotion and Protection Plan- refers to the annual plan of the Local Government Unit on the promotion and protection of human rights in the locality, specifically the human rights issues faced by its constituents. This is a consolidated plan from the different member offices of the Human Rights Action Center.

SECTION 5. Creation- There is hereby created Local Government Unit of Carmen, Surigao del Sur Human Rights Action Center (HRAC) under the Office of the Municipal Mayor in coordination with the Commission on Human rights (CHR) and the Department of the Interior and Local Government (DILG), various associations and league of local government functionaries. The same shall be operationalized by the Human Rights Action Team (HRAcT).

SECTION 6. Composition- The Local Government Unit of Carmen, Surigao del Sur Human Rights Action Team (HRAcT) shall be composed of the following local personnel:

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|-----------------|---|---|
| Chairperson: | - | -Municipal Mayor |
| Co-Chairperson: | - | -Chairman Committee on Laws, Rules, Legal Matters and Human Rights |
| Members: | - | -Municipal Social Welfare and Development Officer |
| | | -Municipal Planning and Development Coordinator |
| | | -Municipal Health Officer |
| | | -Municipal Information Officer |
| | | -Philippine National Police (PNP) Human Rights Affairs Officer |
| | | -School District Supervisor or a DepED Representative |
| | | -President of the Barangay Human Rights Action Officers (BHRAO) Association |



-At least one (1) representative from Civil Society Groups, Non-Government Organizations, or People Organizations accredited by the LGU.

SECTION 7. General Duties and Responsibilities of the Human Rights Action Team (HRAcT)-
The Human Rights Action Team shall have the following duties and responsibilities:

- a. Develop and implement the human rights promotion and protection plan of the local government.
- b. Propose and ensure the integration of human rights programs, projects, and activities in the annual budget appropriation.
- c. Convene once in a semester, year, or as needed to present and discuss plans, accomplishments, and human rights issues in the locality.
- d. Recommend appropriate legislation and provide technical inputs to the Human Rights Committee of the Sanggunian.
- e. Spearhead and coordinate the implementation of human rights programs, projects, and activities.
- f. Serve as an information center on human rights programs and services, including referral systems within the local government.
- g. Posting of human rights programs, projects, and activities on the websites, bulletin boards, and newsletters of the local government.
- h. Encourage and mobilize the participation of Local Government Officials and Civil Society Organizations and People's Organizations in human rights activities in the locality.
- i. Reproduce and disseminate human rights Information, Education and Communication (IEC) materials within the locality.
- j. Strengthen linkages with the regional/field offices of the Commission on Human Rights (CHR) and Department of the Interior and Local Government (DILG), other human rights services providers, and Civil Society Organizations in the implementation of the human rights programs, projects, and activities.
- k. Organize capacity-building on human rights for all LGU officials in close coordination with Regional Officers of the Commission on Human Rights (CHR), Department of the Interior and Local Government (DILG), and other relevant offices.
- l. Organize the Association of Barangay Human Rights Action Officers (BHRAOs) at the municipal level and support their operations.
- m. Establish, maintain, and submit annually a Human Rights Report which is an inventory of complaints received and services rendered to the Provincial HRAC Department of the Interior and Local Government (DILG) Regional Office.
- n. Consolidate Annual Human Rights Reports submitted by the Barangay Human Rights Action Team (BHRAcTs). The Human Rights Action Team (HRAcT) shall submit these reports to the Provincial Human Rights Action Team.
- o. Assist the Barangay Human Rights Action Team (BHRAcTs) in the referral of complaints of human rights violations to Commission in Human Rights (CHR) Regional Offices and other appropriate agencies and monitoring their status thereof.

- p. Assist the Barangay Human Rights Action Teams (BHRACs) in the conduct of human rights advocacy, information, and educational activities.

SECTION 8. Creation of the Human Rights Action Team Secretariat- The Human Rights Action Team Secretariat shall be created at the Provincial level and shall be lodged where the HRAcT Chairperson is holding office. The Secretariat shall be composed of representatives from the Offices of the Municipal Mayor, Local Planning and Development Coordinator, and Local Social Welfare and Development Officer.

SECTION 9. Duties of the Human Rights Action Team Secretariat- The Human Rights Action Team Secretariat shall have the following functions:

- a. Receive, consolidate, and prepare the Annual Human Rights Report submitted by the Barangay Human Rights Action Centers.
- b. Prepare minutes of the meeting.
- c. Assist in coordinating human rights matters with concerned agencies.
- d. Establish and maintain a database of human of human rights reports.
- e. Maintain and update a directory of HRAcTs within its jurisdiction.
- f. Facilitate the administrative concerns of the HRAcT.
- g. Prepare updates on the complaints received and referred by the BHRACt.

SECTION 10. Creation of the Barangay Human Rights Action Center and Team at the Barangay Level- The Barangay Human Rights Action Center (BHRAC) is hereby established to act on human rights matters, including human rights promotion and complaints of human rights violations which shall be operated by the Barangay Human Rights Action Team (BHRACt) and shall be composed of the following:

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|--------------|---|---|
| Chairperson: | - | -Chairman, Committee on Human Rights |
| Members: | - | -Barangay Secretary |
| | | -Barangay Chief Tanod |
| | | -Barangay Health Worker |
| | | -Barangay VAW Desk Officer |
| | | -One (1) Representative of the Barangay Council for the Protection of Children |
| | | -One (1) representative of the Lupong Tagapamayapa |
| | | -Chairman Committee on Peace and Order |
| | | -School Head of a public or private school |
| | | -One (1) Representative of Civil Society Organization/Non-Government Organizations/People’s Organizations |

All Barangays under the Local Government, through their respective Sanggunian, shall pass an ordinance creating the same within thirty (30) days from the approval of this Ordinance.

SECTION 11. Specific Duties of the Human Rights Action Center and Team in all Barangays- All Barangays Human Rights Action Centers (HRAC) shall perform all general duties as listed in Section 7 items a-k at the barangay level. Moreover, the following specific duties will be performed:

- a. Consolidate human rights reports from both barangay-based institutions (e.g. Lupong Tagapamayapa, VAW Desk, BCPC, etc.) and non-government entities (e.g. sectoral CSOs and purok leaders) in the community.
- b. Submit annual Barangay Human Rights Reports to the Municipal Human Rights Action Center.
- c. Conduct human rights advocacy, information, and educational activities.
- d. Receive complaints of human rights violations and refer the same to the nearest CHR Regional Office and other appropriate agencies copy furnished to the Municipal Human rights Action Center and monitor the status thereof.

SECTION 12. Appropriation- The Maintenance and Other Operating Expenses of the HRAC, as well as its Capital Outlays shall be regularly provided for in the Annual Appropriations Ordinance and such other Supplemental Appropriation Ordinance enacted by the Sanggunian. Local Government Unit of Carmen may specify a certain amount for the establishment and operationalization of HRAC.

SECTION 13. Separability Clause- If any provision of this Ordinance is declared invalid or unconstitutional, the remaining provisions not affected thereby shall continue in full force and effect.

SECTION 14. Applicability Clause- All matters relating to the Ordinance not otherwise provided therein shall be governed by pertinent provisions existing laws, rules and regulations ordinances, and resolutions.

SECTION 15. Repealing Clause- All ordinances, rules, and regulations or part thereof, in conflict with or inconsistent with any provisions of this Ordinance, are hereby repealed or modified accordingly.

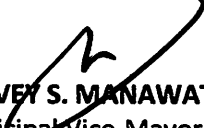
SECTION 16. Effectivity- This Ordinance shall take effect after completion of its posting in at least two (2) conspicuous places in the municipality of Carmen, Surigao del Sur.

ENACTED this 8th day of October, 2024 at Carmen, Surigao del Sur.

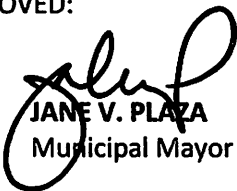
I HEREBY ATTEST to the correctness of the foregoing ordinance.


MA. JULINA T. BORDA- JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


HARVEY S. MANAWATAO
Municipal Vice-Mayor/
Presiding Officer

APPROVED:


JANE V. PLAZA
Municipal Mayor